

YOUR GUIDE TO COMMUNITY FEES

Community fees in Spain: what you pay and your rights

What the fees cover, how decisions are made, what happens when a payment is late and how to protect yourself, explained in plain language.

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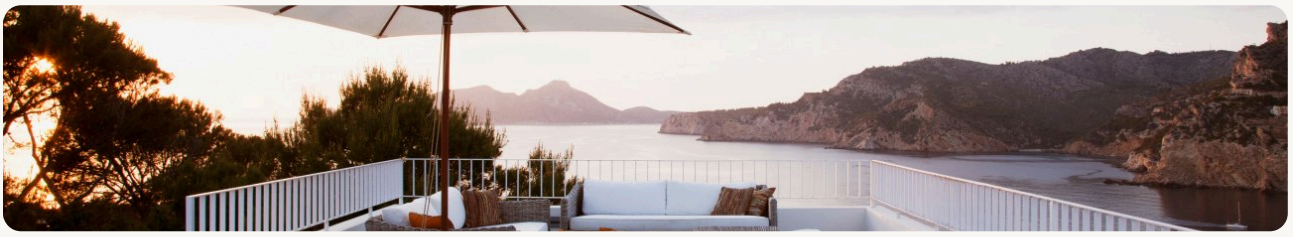
INTRODUCTION

Do you share a pool, a garden or a stairwell?

If your home shares anything with other homes, you are part of a community of owners and you pay community fees. This guide explains what those fees cover, how they are decided and what your rights are, as they stand in November 2026.

The essentials at a glance

- Every owner pays a share of the shared costs, set by the participation quota in the deeds.
- Owners who are behind with their fees can attend the meeting but cannot vote.
- Late payment penalties are allowed, but Spain's Supreme Court has ruled that they must be proportionate.
- Unpaid fees from the current year and the three years before it follow the home when it is sold.
- You can challenge a decision in court within three months, or within one year if it breaks the law.



What your community fees cover

Community fees pay for everything that is shared: the parts of the building and the grounds that no single owner is responsible for alone.

Running costs	Cleaning of halls, stairs and garages, gardening, pool cleaning, lift and boiler maintenance, lighting of shared areas and the building's insurance.
Reserve fund	By law, every community keeps a reserve fund of at least 10% of its last ordinary budget, to cover repairs that cannot wait.
Extra payments	Larger works, such as a new roof or repainting the facade, are often paid through a one-off extra payment, called a derrama, agreed at a meeting.

How much you pay depends on the services your community offers and the size of your share. Many owners pay around 100 euros a quarter, while owners in developments with pools, gardens and security can pay well over 1,000 euros.

Your share is in the deeds

Each home has a participation quota, the cuota de participación, written in the deeds. It sets your share of the costs and the weight of your vote, which is why a large penthouse usually pays more than a small ground floor flat.

How decisions are made

The community is run under Spain's Horizontal Property Law. The owners decide together at a general meeting, usually once a year.

01

The yearly meeting approves the budget

Owners vote on the budget, planned repairs and the community's own rules for shared areas, such as quiet hours by the pool or whether pets are allowed. You must be invited at least six days before the yearly meeting.

02

Owners who are behind cannot vote

An owner who has not paid what is due can still take part in the discussion, but has no vote until the debt is paid. Paying on time keeps your voice in the decisions that affect your home.

03

You can vote through someone else

If you cannot travel to Spain for the meeting, you can give another person written authority to attend and vote for you.

04

New tourist lets need the community's approval

Since April 2025, starting a tourist let in a shared building needs the approval of three fifths of the owners. With the same majority, the community can raise the fees for that home by up to 20%.

THREE FIFTHS OF OWNERS

What happens when a payment is late

Spanish law gives communities strong tools to collect what they are owed, because every unpaid fee is covered by the other owners.

Interest runs from the day the fee is due

Unpaid fees build up interest from the day they should have been paid. A community can agree on interest above the legal rate, as long as it is not abusive or out of proportion.

Penalties must be proportionate

In November 2026, Spain's Supreme Court struck down a surcharge of 50 cents for every day a payment was late. It was the same whatever the amount owed, and the court found it disproportionate.

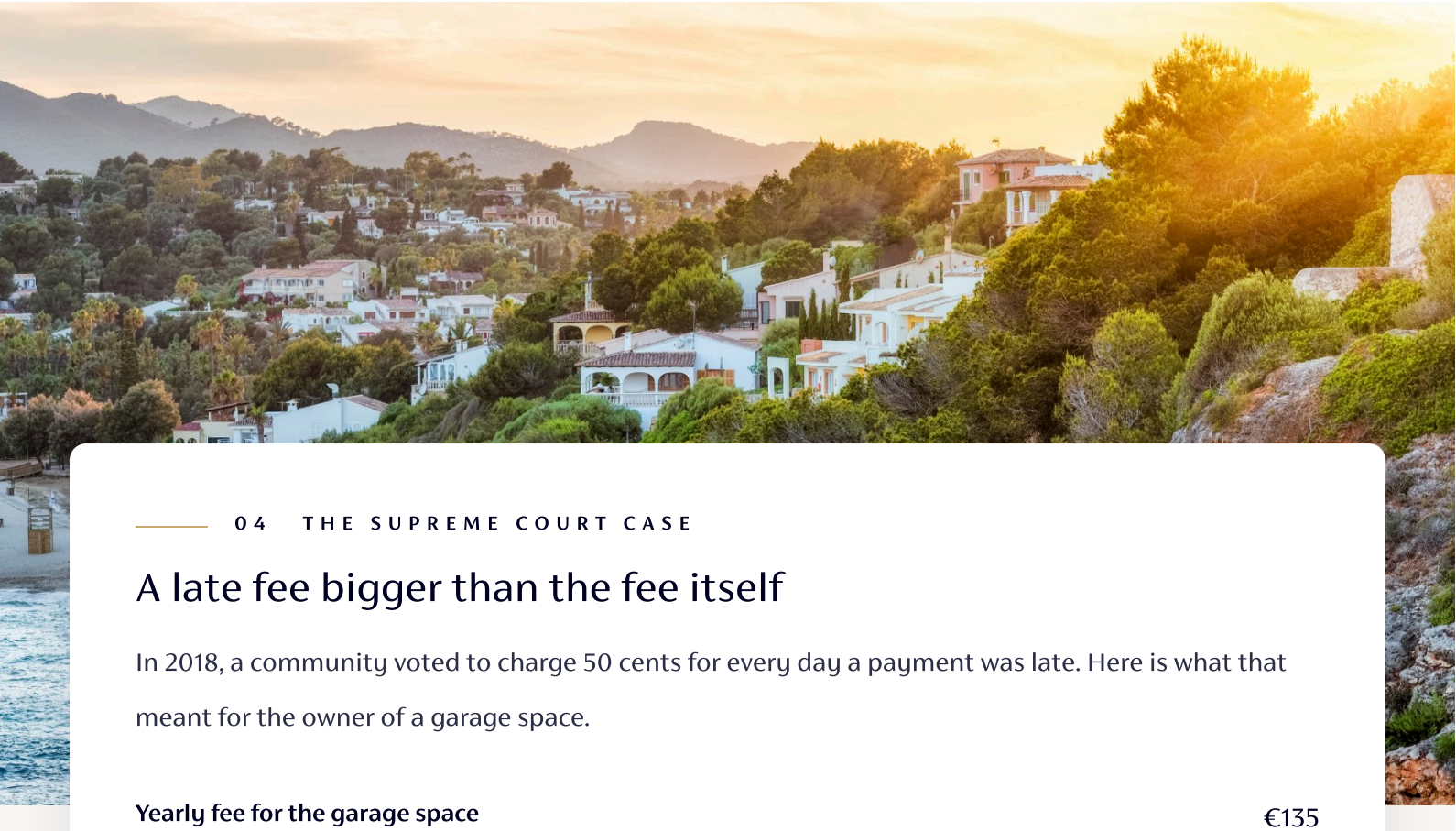
The community can go to court

A community can claim unpaid fees through a fast court procedure for debts, the proceso monitorio. The owner who owes the money may also have to pay the legal costs.

In the worst cases, the home can be sold

When a debt goes unpaid for a long time, the community can ask the court to auction the home to recover what is owed.

Most owners already pay their community fees by direct debit. The simplest way to stay safe is to make sure that direct debit comes from an account that always has enough money in it.



04 THE SUPREME COURT CASE

A late fee bigger than the fee itself

In 2018, a community voted to charge 50 cents for every day a payment was late. Here is what that meant for the owner of a garage space.

Yearly fee for the garage space The normal community fee for one year.	€135
Late surcharge agreed in 2018 Charged for every day, whatever the amount owed.	€0.50 a day
Surcharge over a full year 365 days at 50 cents.	€182.50

Supreme Court ruling, November 2026

Struck down

€0.50 × 365 days = €182.50, more than the €135 fee itself.

Old debts follow the home

Community debts are tied to the home, not only to the person who owned it.

That matters every time a home changes hands.

01 When you buy

A buyer answers with the home for unpaid fees from the current year and the three years before it. Ask for a certificate from the community's secretary showing that the fees are paid, and make sure any debt is settled before you sign at the notary.

02 When you sell

The seller must declare in the deed of sale that the community fees are paid up to date. Having the certificate ready avoids delays at the notary.

6 days

The minimum notice you must get before the yearly meeting.

3 months

The usual time you have to challenge a community decision in court.

1 year

The time you have if the decision goes against the law or the community's statutes.

To challenge a decision, you normally need to be up to date with your fees, or to pay what is owed into court first. If you are unsure, ask a lawyer before the deadline passes.



06 BUENO ACCOUNT

Your home in Spain, without the paperwork

Bueno brings the running of your Spanish home into one place, with a professional team that helps you whenever you need it.

01 Our team is there when you need us, by phone, WhatsApp, chat and email.

02 You register a direct debit change in the app, and we handle the rest.

03 You can see what your home is worth today and keep your property papers in one place.

04 We file your Spanish non-resident tax return, the Modelo 210, for you.

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